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JUSTIFICATION REVIEW DOCUMENT
FAR 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL

Program/Equipment: United States Criminal Investigation Laboratory Qiagen Advanced XL EZ1DNA Instruments

Authority: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 as implemented by FAR 13.5.

Amount: [Redacted]

Prepared by: [Redacted] [Redacted]

Contracting Officer: Ashley Scott
Division Chief
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COM: [Redacted]
Date: 29 NOV 2024

Technical: [Redacted] [Redacted]

Requirements: [Redacted] [Redacted]

Reviews: I have reviewed this justification and find it adequate to support sole source.

Program Manager:
[Redacted]
[Redacted]
COM: [Redacted]
Date: See digital signature

Small Business Professional:
[Redacted]
[Redacted]
COM: [Redacted]
Date: See digital signature

[Redacted]

[Redacted]

Control No.: Eisenhower 2025-5

Legal Counsel:

[Redacted]

[Redacted]

COM: [Redacted]

Date: See digital signature

Director, MICC-Ft. Eisenhower:

[Redacted]

[Redacted]

DSN: [Redacted]

Date: See digital signature

[Redacted]

**FAR 13.5 Simplified Procedures for Certain Commercial Items
Sole Source Justification and Approval**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Eisenhower, 271 Heritage Park Lane, Bldg. 35200, Fort Eisenhower, GA. 30905

2. Description of Action: United States Army Criminal Investigation Laboratory requests a firm-fixed-price contract with Qiagen, LLC. The Government projects award for January 2025 and fiscal year 2025, funds type Operations and Maintenance funds will be used.

☒ An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

This action is a follow-on to contract W91249-24-P-0013. That contract was not competed under authority, 41 U.S.C. 1901, as implemented by FAR Subpart 13.5. Paragraph, "Actions to Increase Competition" of the previous justification, stated: USACIL scientists are continually researching sources of information and services to enable forensic examiners to conduct effective and reliable examinations. Market research consists of Internet research, literature reviews and face to face discussions with vendors, and other professional resources attending forensic science and technology conferences and industry events. If USACIL identifies a similar requirement, every effort will be made to compete it to the maximum extent possible. Those actions were accomplished and USACIL continues to monitor changes in the market condition.

3. Description of Supplies/Services: This is a non-personnel services contract to provide annual preventive maintenance and service repair for Qiagen instruments operated by the U.S. Army Criminal Investigation Laboratory (USACIL) and the Office of Forensic research (OFR). The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government. The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform the needed service and repair of the instrumentation. The contractor shall perform to the standards in this contract. The Qiagen Master Service Agreement plan provides technical support and maintenance for Qiagen instrumentation. The service includes annual preventative maintenance service and onsite technical support for instrument failures or needed repairs. The service covers the cost of the materials/parts needed and the service engineer who performs the tasks.

Period of Performance: 01 January 2025 to 31 December 2025

Value:

Far Clause 52.217-8: 01 January 2026 to 31 July 2026

Value:

Total Value:

4. Authority Cited: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 (or Title 41 U.S.C. 1903 for Special Emergency Procurement) as implemented by FAR Subpart 13.5:

☒ Other: Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Reason for Authority Cited:

a. The United States Criminal Investigation Laboratory (USACIL) located at the Gillem Enclave in Georgia, provides forensic laboratory services to the Department of Defense investigative agencies and other Federal law enforcement agencies. The US Army Criminal Investigation Laboratory DNA Branch, Advanced XL DNA extraction instruments, and supplies produced and marketed by QIAGEN Inc. The purchasing of these supplies will ensure continuity of ISO 17025 ANSI-ASQ National Accreditation Board accredited processes at USACIL.

QIAGEN Inc holds the patents and is the only company that manufactures QIAGEN instrumentation, performs installation and provides maintenance and training services for this equipment. The manufacturer provided a proprietary letter.

b. Alternatives. There are no other alternatives. QIAGEN Field Service is the only organization certified by QIAGEN to Repair, Qualify, Calibrate, Upgrade, Maintain and Move QIAGEN instrumentation. Attempts to perform any Repairs, Calibration, Preventive Maintenances or Moves by organizations or individuals other than QIAGEN Field Service or those directed by QIAGEN Field Service, immediately and irrevocably void any QIAGEN Warranties or QIAGEN Support Agreements. This would compromise ongoing DNA research and potentially invalidate forensic examination laboratory results. Other manufacturers of DNA extraction instrumentation have been evaluated at USACIL and compared with the Qiagen EZ1 Advanced XL DNA extraction instruments. The Qiagen EZ1 Advanced XL DNA extraction instruments provided the best quantity and quality of DNA extracts in that comparison. If other DNA extraction equipment were purchased from a different vendor, that equipment would have to be subjected to a lengthy and costly validation process before use and demonstrate the ability to provide the quality of DNA extraction results, we obtain from the Qiagen equipment

c. Impact if justification not approved: Failure to obtain approval of this J&A will result in USACIL not being able to obtain the equipment required to maintain ISO laboratory processes for mission critical criminal and sexual assault investigations.

6. Efforts to Obtain Competition: USACIL scientists are continually researching sources of information and services to enable forensic examiners to conduct effective and reliable examinations. Market research consists of internet research, literature reviews and face to face discussions with vendors, and other professional resources attending forensic science and technology conferences and industry events. If USACIL identifies a similar requirement, every effort will be made to compete it to the maximum extent possible.

7. Actions to Increase Competition: To increase competition, MICC-Fort Eisenhower will continue to synopsise and conduct market research to ensure there are no other vendors that can provide the requirement. The Government will issue a Notice of Intent and address any responses accordingly, however QIAGEN Field Service is the only

organization certified by QIAGEN to Repair, Qualify, Calibrate, Upgrade, Maintain and Move QIAGEN instrumentation.

8. Market Research: Market research was conducted through internet inquiries and on the General Services Administration (GSA) Advantage web site to determine if required products are available through Federal Supply Schedules. A search in December 2024 Qiagen instruments revealed that there are no vendors that currently hold a FSS that appear to distribute Qiagen products through GSA Advantage. Market survey inquiries via emails identified Qiagen, Inc as the only distributor of the required products. A Sources Sought was issued on 12/11/2024 by MICC - Fort Eisenhower and received zero responses. Qiagen provided a sole source letter that stated, "QIAGEN Field Service is the only organization certified by QIAGEN to Repair, Qualify, Calibrate, Upgrade, Maintain and Move QIAGEN instrumentation. Attempts to perform any Repairs, Calibration, Preventive Maintenances or Moves by organizations or individuals other than QIAGEN Field Service or those directed by QIAGEN Field Service, immediately and irrevocably void any QIAGEN Warranties or QIAGEN Support Agreements."

9. Interested Sources: To date, no other sources have written to express interest in the acquisition.

10. Other Facts:

a. Procurement History:

Contract number: W91249-24-P-0013
Vendor: Qiagen, LLC
Award date: 1 January 2024
Competitive Status: Sole Source
Authority cited: FAR Subpart 13.105: Only one reasonable source available.

Contract number: W91249-21-P-0007
Vendor: Qiagen, LLC
Award date: 1 January 2021
Competitive Status: Sole Source
Authority cited: FAR Subpart 13.105: Only one reasonable source available.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

 Digitally signed by 

USACIL Supervisory Biologist

Date: See digital signature

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted]

Date: See digital signature

[Redacted]

Deputy Assistant Director

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using the following price analysis. As a part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial.

SCOTT.ASHLEY.TIE
RA. [Redacted]

Digitally signed by
SCOTT.ASHLEY.TIERA [Redacted]
Date: 2024.12.18 13:03:27 -05'00'

Date: See digital signature

Ashley Scott
Contracting Officer

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

SCOTT.ASHLEY.TIE
RA. [Redacted]

Digitally signed by
SCOTT.ASHLEY.TIERA [Redacted]
Date: 2024.12.18 13:04:54 -05'00'

Date: See digital signature

Ashley Scott
Contracting Officer